

Haroon v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 4 April 2023 · Writ - C No. 10186 of 2023 · **Petition disposed after recovery withdrawn; fresh Supply Code order after hearing.**

HEADNOTE

The Electricity Department withdrew the recovery citation dated 21.02.2023 and undertook to pass a fresh order after hearing the petitioner. The writ was disposed of with liberty to the respondents to proceed afresh strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. No clause of the Code was construed.

FACTUAL SUMMARY

Haroon filed a writ petition in the Allahabad High Court challenging a recovery citation dated 21 February 2023 issued by respondent no. 4 for electricity dues. On 28 March 2023 counsel for the Electricity Department sought time to obtain instructions, and the petition was directed to be listed on 4 April 2023. On that date the Department's counsel stated that the impugned recovery had been withdrawn and that a fresh order would be passed after the petitioner was heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

Fresh proceedings after withdrawal of a recovery citation

HOLDING

On the Electricity Department's statement that the recovery citation dated 21.02.2023 had been withdrawn and that a fresh order would follow an opportunity of hearing, the writ was disposed of with liberty to the respondents to proceed afresh strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

FLAG Order names the U.P. Electricity Supply Code, 2005 but states no clause number.

PRINCIPLE TAGS

recovery-citation-withdrawn-liberty-to-proceed-afresh-under-supply-code The citation having been withdrawn, with an undertaking to hear the petitioner and pass a fresh order, the writ was closed and any further action was reserved to the procedure under the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY DUES COVERED BY THE RECOVERY CITATION DATED 21.02.2023 WERE PAYABLE BY THE PETITIONER.

The citation was withdrawn. The court did not examine the demand and left the respondents to pass a fresh order after hearing, if they proceeded under the Supply Code, 2005. ¶ 1